

FIRST ENGROSSMENT

ENGROSSED SENATE BILL NO. 2225

Introduced by

Senators Bekkedahl, Meyer, Wanzek

Representatives Nathe, Nelson, O'Brien

1 A BILL for an Act to provide an appropriation to the department of commerce for a housing for
2 opportunity, mobility, and empowerment program; to provide for a legislative management
3 report; and to declare an emergency.

4 **BE IT ENACTED BY THE LEGISLATIVE ASSEMBLY OF NORTH DAKOTA:**

5 **SECTION 1. APPROPRIATION - DEPARTMENT OF COMMERCE - STRATEGIC**
6 **INVESTMENT AND IMPROVEMENTS FUND - HOUSING FOR OPPORTUNITY, MOBILITY,**
7 **AND EMPOWERMENT GRANT PROGRAM - MATCHING FUNDS REQUIREMENT -**
8 **LEGISLATIVE MANAGEMENT REPORT - ONE-TIME FUNDING.**

9 1. There is appropriated out of any moneys in the strategic investment and
10 improvements fund in the state treasury, not otherwise appropriated, the sum of
11 \$50,000,000, or so much of the sum as may be necessary, to the department of
12 commerce for the purpose of providing housing for opportunity, mobility, and
13 empowerment program grants to political subdivisions to build infrastructure necessary
14 to support affordable, market rate housing for the period beginning with the effective
15 date of this Act, and ending June 30, 2027. This funding is considered a one-time
16 funding item.

17 2. The department of commerce shall use funding appropriated in this section to provide
18 grants to political subdivisions to assist communities address housing needs by
19 lowering the cost of infrastructure development and for slum and blight removal. The
20 department shall allow a community to identify the type of housing most needed and
21 cooperatively create solutions to address the housing need through a political

subdivision or economic development corporation. The department shall establish guidelines for providing grants under the program.

3. The department of commerce shall allocate funding appropriated in this section as follows:

- a. \$10,000,000 for communities with a population of fewer than 5,000 individuals;
- b. \$20,000,000 for communities with a population of 5,001 to 20,000 individuals;
- c. \$15,000,000 for communities with a population of more than 20,000 individuals;
- and
- d. \$5,000,000 for rural metropolitan areas located within 20 miles of the city limits of a community of more than 20,000 individuals.

4. The maximum grant award for a community with more than 20,000 individuals is \$1,500,000.

5. If all funding appropriated in this section is not committed or expended by December 31, 2026, the department of commerce may award any remaining funds to viable projects regardless of community size or location.

6. The department of commerce may spend the funds appropriated in this section only to the extent matching funds have been secured from nonstate sources on a dollar-for-dollar basis. The matching funds must be derived from funds provided by a political subdivision and local developers and private funds from within the community applying for grant funding. The private funds from within the community may be from a local development corporation, donations, or in-kind contributions.

7. The department of commerce shall provide a report to the legislative management and the governor by June 30, 2026, regarding the status of the program, including expenditures to date, the number of housing units supported, communities applying for grants, and matching funds raised by political subdivisions, local developers, and communities.

SECTION 2. EMERGENCY. This Act is declared to be an emergency measure.